

# Lease protection strategies, legal recourse for tenant debt, financial recovery methods — Action Checklist

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## UNDERSTAND YOUR LEASE EXPOSURE

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- ☐ **Understand Your Lease Exposure, Item 1:** Read your lease's liability section today to find joint and several language that makes you responsible for your roommate's unpaid rent.
- ☐ **Understand Your Lease Exposure, Item 2:** Calculate your total financial exposure by multiplying your monthly rent by the remaining months left on your lease term.
- ☐ **Understand Your Lease Exposure, Item 3:** Search your lease for terms like 'joint,' 'several,' 'liable,' and 'responsible' to identify exactly where your financial exposure lives.
- ☐ **Understand Your Lease Exposure, Item 4:** Contact your landlord to ask for written clarification if your lease's liability language is unclear or confusing.

## DOCUMENT AND COMMUNICATE EVERYTHING

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- ☐ **Document and Communicate Everything, Item 1:** Keep detailed records of every Venmo request, text message, and conversation about rent that your roommate failed to pay.
- ☐ **Document and Communicate Everything, Item 2:** Send written notice to your roommate documenting the exact amount they owe and the specific date payment was due.
- ☐ **Document and Communicate Everything, Item 3:** Notify your landlord in writing about your roommate's non-payment and your plan to address the shortfall going forward.
- ☐ **Document and Communicate Everything, Item 4:** Track every conversation and deadline in your companion Action Checklist so you have a single timeline of the entire situation.

## PURSUE LEGAL AND FINANCIAL RECOVERY

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- ☐ **Pursue Legal and Financial Recovery, Item 1:** File a small claims action for documented roommate debt if the amount falls within your state's small claims jurisdiction limit.

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  - ☐ **Pursue Legal and Financial Recovery, Item 2:** Send a formal demand letter to your roommate stating the total debt owed and a deadline for payment or settlement negotiation.

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  - ☐ **Pursue Legal and Financial Recovery, Item 3:** Negotiate a settlement agreement in writing that includes a payment plan or lump sum payoff amount that works for your budget.

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  - ☐ **Pursue Legal and Financial Recovery, Item 4:** Consult a tenant rights attorney about your specific state laws regarding joint liability and your options for breaking lease responsibility.
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